

02. 14.05.2020

The petitioners-CICL by filing this revision have assailed an order dated 14.02.2020 passed by the learned Additional Sessions Judge-cum-Special Judge, Keonjhar in Criminal Appeal No. 09 of 2020.

By the said order, the learned court below has refused to release the petitioners-CICL, who are in the Observation Home in connection with JJC No. 01 of 2020 arising out of Keonjhar Sadar P.S. Case No. 31 of 2020 registered for commission of offence under sections 399/402 IPC read with section 25/27 of the Arms Act and thereby has confirmed the order passed by the learned PM, JJB, Keonjhar.

Learned counsel for the petitioners-CICL submits that merely for the alleged presence of the petitioners-CICL who are brothers, with other co-accused persons at the relevant time when the police personnels arrived and nabbed them; the petitioners-CICL have been implicated in the case. He further submits that even accepting the prosecution version for a moment, accidental presence of the petitioners-CICL at the place is not altogether ruled out. It is submitted that the courts below without referring to any specific material on record either relating to the alleged accident or concerning the petitioners-CICL have abruptly arrived at a conclusion that the release of the petitioners-CICL on bail, would expose them to mental and physical danger and bring them in association with the criminals, as also would defeat the ends of justice. It is submitted that said observations without projection of any specific facts and circumstances from the side of the prosecution are baseless. In view of all the above, he urges that the courts below have erred in passing the impugned orders refusing to release the petitioners-CICL on bail.

Learned counsel for the State submits all in favour of the impugned order. According to him, the courts below having pressed the proviso contained in sub-section (1) of section 12 of Juvenile Justice (Care and Protection of Children), Act, 2015 into service, the same is not liable to be interfered with.

Keeping in view the submissions made, the impugned order being perused; it is seen that the courts below while going to turn down the prayer for release of the petitioners-CICL on bail although have pressed the proviso of sub-section (1) of section 12 of the Act into service, yet no such material collected in course of investigation has been hinted at nor any such facts and circumstances surrounding the alleged incident or concerning the petitioners-CICL have been discussed. It is not stated that the petitioners-CICL being released on bail would not be getting due care and protection from the side of their mother and other family members.

In view of all the aforesaid, the impugned order is set aside and in the facts and circumstances and in the absence of any such peculiar fact concerning the petitioners-CICL so as to press the proviso to sub-section (1) of section 12 of the Act; it is directed that the petitioners-CICL be released on bail in the above noted case on such terms and conditions as deemed just and proper by the learned court in seision of the case.

The revision is accordingly disposed of.

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D. Dash, J.